

24PSCV03325 24PSCV03325

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-07-14

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Case Number: 24PSCV03325 Hearing Date: July 14, 2026 Dept: H

Brothers

Motoring Group, LLC dba BMG Auto Sales v. Chungjeng

Tang, Case No. 24PSCV03325

ORDER ON

DEFAULT JUDGMENT APPLICATION

Plaintiff Brothers Motoring

Group, LLC dba BMG Auto Sales's Application for Default Judgment against
Chungjeng Tang is DENIED without prejudice.

Background

Plaintiff Brothers Motoring Group, LLC dba BMG Auto

Sales ("Plaintiff") alleges that between

October 2022 through March 2023, it

purchased 13 vehicles from Defendant Chungjeng Tang ("Defendant"). Plaintiff claims that at the time of sale, all vehicles showed clean title, but that Plaintiff later discovered fraudulent titles and other false representations.

On June

20, 2024, Plaintiff filed complaint, raising several causes of action against Defendant, including causes of action for negligent misrepresentation, intentional misrepresentation, breach of contract, concealment, and conversion.

Defendant was served via

publication. The clerk entered default against Defendant on March 11, 2026.

Pending before the Court is
Plaintiff's application for default judgment.

Discussion

Plaintiff's application for
default judgment is denied without prejudice.

Plaintiffs seek the following
damages from Defendant:

Damages

\$992,449.12

Punitive Damages

N/A

Interest

N/A

Attorneys' fees

N/A

Costs

\$6,515.88

TOTAL

\$998,965

At the outset, other than a
summary of the action, Plaintiff's application lacks sufficient evidence to
support the requested damages. The declaration of Emmet Gilman only addresses
costs. The declaration of Jason Xiing/XXing (spelled both ways) does not
sufficiently address all of the alleged vehicles.

Second, Defendant was never served with a statement of damages. (Code Civ. Proc., 425.11.)

Plaintiff's application for default judgment is denied, without prejudice, due to lack of evidence and no service of a statement of damages. Plaintiff is directed to submit a revised and complete default judgment application that addresses the aforementioned issues; piecemeal submissions will not be accepted.